

Federal Fair Housing Law Exemptions

Fair housing law was designed to protect citizens from discrimination. It was not designed to prohibit non-discriminatory behavior, or even certain behaviors that discriminate, but to protect citizens seeking housing. Some exemptions to coverage under the Fair Housing Act include:

- **Owner-occupied dwellings with no more than four families living independently of each other** [U.S.C. § 3603 (b) (2)]: Suppose an older widow were to rent out rooms in her home to help make ends meet. This imagined "Mrs. Murphy" is exempt from fair housing laws. This is referred to as the "Mrs. Murphy exemption." However, Mrs. Murphy could not run discriminatory advertising if she were to advertise her rental. And if Mrs. Murphy used the services of a real estate agent, the exemption would not apply.
- **Single-family housing sold or rented without the use of a broker** [U.S.C. §3603 (b)(1)]: This is applicable if the private individual owner does not own more than three such single-family homes at one time.
- **Housing operated by religious organizations and private clubs that limit occupancy to members** [U.S.C. § 3607 (a)]: Religious organizations are allowed to give preference to and/or restrict occupancy in non-commercial housing to individuals of the same religion, as long as the religion doesn't restrict membership based on race, color, or national origin. Private clubs are also allowed to give preference to and/or restrict occupancy in non-commercial housing to members.
- **Housing designated for senior use:** Federal law allows an exemption *on the basis of familial status only* for senior housing (not all protected classes). Senior housing must meet any of the following specific requirements to qualify for this exemption:
 - HUD has determined that the dwelling is specifically designed for and occupied by older persons under a federal, state, or local government program
 - It is occupied solely by persons who are 62 or older
 - It houses at least one person who is 55 or older in at least 80% of the occupied units, and adheres to a policy that demonstrates intent to house persons who are 55 or older.

Note: When state and federal laws conflict, as they sometimes do in fair housing/human rights, you'll find yourself following a more restrictive state law. That's because state laws aren't allowed to reduce the rights granted to citizens by the federal law, nor can the state law limit the responsibilities citizens have under federal law. For example, state law can't reduce rights granted under the Civil Rights Act of 1866, which prohibits all discrimination on the basis of race, color, or national origin.